

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JANA SABO,

Petitioner

VS.

ERIC OSMOLINSKI,

Respondent

) Case Number: FDI-25-801763

) Hearing Date: August 27, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER OF CHILD CUSTODY, SPOUSAL OR PARTNER SUPPORT, ATTORNEY
FEES AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Jana Sabo (Mother) and Respondent Eric Osmolinski (Father) married on 2/19/2011.
Mother contends the parties separated on 8/1/2025, for a marriage of 14 years and 5 months.
Father states the date of separation is in November 2023, for a marriage of 12 years and 9 months.
The parties have three minor children, Jacob (DOB: 7/25/2011, age 14), Julian (DOB: 3/21/2014,
age 12), and Lucas (DOB: 2/14/2016, age 10). Mother is represented by attorney Joseph
Willmore. Father is represented by attorney Katy Gasparini.
- 2) There is currently a trial pending before the Honorable Judge Gold in related Case No. FDV-26-
819044 on Mother's Request for Domestic Violence Restraining order to protect herself and the
minor children against Father. Three days of trial occurred on 7/1/2026, 7/22/2026, and
7/28/2026. On 7/28/2026. Two additional days of trial are scheduled to occur on 10/1/2026 and
12/3/2026.

- 1 3) A 1st Amended Temporary Restraining Order (TRO) in was filed 4/29/2026 in the related FDV
2 case which protects Mother and the parties' minor children against Father. Among other orders,
3 the TRO requires Father to move out of the residence located at 2442 Larkin St. San Francisco,
4 CA 94109, grants Mother temporary legal and physical custody of the children, and grants Father
5 unsupervised visitation time with the children on alternate weekends from Friday 7 PM to Sunday
6 7 PM.
- 7 4) On 4/17/2026, Mother filed the instant Request for Order seeking guideline child support,
8 temporary guideline spousal support, and \$50,000 in need-based attorney's fees and costs.
9 Mother states the parties' marital standard of living was in the top 1%. Mother states Father earns
10 \$1.7 million annually as an oral surgeon whereas she earns \$573,428 annually as a self-employed
11 dentist. Mother states she currently cannot work because Father dislocated her jaw and knocked
12 out a tooth and her jaw is wired shut.
- 13 5) On 3/27/2026, Mother filed an Income and Expense Declaration. Mother states that she is 48
14 years old. Mother estimates that Father earns \$141,941 per month (i.e. \$1,703,292 annually)
15 based on her personal knowledge of work performed as an oral surgeon as well as her personal
16 knowledge of K-1s and prior tax returns. Mother states she earns \$47,785 per month (i.e.,
17 \$573,420 annually) in net self-employment income as a dentist. Mother states that her monthly
18 expenses total \$62,930, which includes \$21,000 per month for mortgage, \$8,800 per month for au
19 pair, \$2,400 per month for groceries, \$9,500 per month for school tuition, and \$6,600 for camps
20 and extracurricular activities for the children plus special services. Mother states that she has
21 \$50,000 in cash savings, \$40,000 in easily saleable investments, and her estimate of the total
22 value of the marital estate is \$8 million. Mother lists the following debts: \$16,000 for Honda,
23 \$28,000 for Porsche, and \$45,000 in credit card debt. Mother attached her K-1s for 2023 and
24 2024. Mother states that she has paid her attorney \$14,500 to date using savings and that she does
25 not currently owe any amount to her attorney.
- 26 6) On 5/19/2026, Mother's attorney Joseph Willmore filed a declaration stating that he has 13 years
27 of experience as a family lawyer, is a Certified Family Law Specialist, and he charges \$525 per
28 hour. Mr. Willmore states Mother has incurred \$11,197.40 in fees and costs thus far and he
29 anticipates an additional \$50,000 in fees including multiple hearings on the restraining order,

1 child custody, spousal support, issues concerning occupancy and sale of the marital residence,
2 meet-and-confer efforts, review of responsive pleadings, correspondence, preparing for
3 hearing(s), hearing(s), evidentiary hearing(s), trial, preparing orders and Judgment.

4 7) On 6/25/2026, Father filed a Responsive Declaration asking that the Court deny or reserve
5 jurisdiction on temporary spousal support until Mother has provided current profit and loss
6 statements, balance sheets, and related business records for her two dental practices. Father states
7 the Court should reserve jurisdiction on child support because custody and parenting time will
8 likely change after the domestic violence proceedings conclude on 7/28/2026. Father states the
9 Court should deny Mother's request for attorney's fees because she has not demonstrated need or
10 a meaningful disparity in access to funds. Father states that he is currently paying \$21,500 per
11 month for carrying costs for the family home where Mother exclusively resides with the children.
12 Father also states that Mother omitted mention of the \$8,500 per month she receives from IHSS
13 as the caregiver of their special needs child Lucas.

14 8) On 6/26/2026, Father filed an Income and Expense Declaration. Father states that he is 48 years
15 old. Father estimates that Mother earns \$56,285 per month (i.e. \$675,420) based on the \$47,785
16 per month that Mother reports earning plus "\$8,500 IHHS income not disclosed." Father states
17 that the parties have three properties (two in Hawaii and one in Las Vegas) that generate a loss
18 each month. Father states that he earns \$104,333 in net self-employment income per month as an
19 oral and maxillofacial surgeon. Father states that his monthly revenue decreased over the past 12
20 months by \$25,000 to \$30,000 per month due to "changes in ownership, patient flow, and
21 referrals at multiple dental offices where I practice." Father states that he has \$9,000 in cash
22 savings, \$563,000 in easily saleable investments, and the parties own \$8.5 million in equity in
23 various real properties. Father states his monthly expenses total \$82,295, which includes \$21,500
24 for mortgage for the family residence, \$18,000 for rent for himself, \$3,500 in anticipated
25 childcare, and \$26,000 for personal expenses charged to his credit card. Father states he has paid
26 \$17,810 to his attorney to date using "earnings" and he still owes his attorney \$500.

27 9) On 7/7/2026, Mother filed a Reply Declaration reiterating her original requests for order, with
28 support retroactive to 4/1/2026. Mother requests that the Court use \$141,941 for Father's monthly
29 net self-employment income in a support calculation. Mother states the domestic violence trial is

1 anticipated to be four days in length and is “not scheduled to conclude until October 2026.”
2 Mother states Father has made no voluntary support payments and has contributed “nothing”
3 towards expenses for childcare (au pair), private school tuition, extracurricular activities, camps,
4 and special services, which Mother states total \$29,800 per month. Mother states that Father
5 purchased a new home in Hawaii on 4/26/2026 with a purchase price of \$1.9 million, with a
6 \$700,000 down payment, which Mother states is a breach of Father’s fiduciary duty to the
7 community. Mother also states Father failed to attach a “single K-1” to his Income and Expense
8 Declaration and only provided a “very deficient document that he purports to be his Profit & Loss
9 Statement” which covers a mere 5 month period between January and May 2026. Mother also
10 states Father failed to provide a balance sheet. Mother states that “officer salary” (\$80,000)
11 should be added back to Father’s income as well as a \$5,502 for “ask my accountant” because it
12 is “not a valid deduction.” Mother states that her most recent Income and Expense Declaration
13 provides three years of K-1s and her most recent P&L. Mother attached to her Reply Declaration
14 a K-1 for Father for 2024 which Mother states shows Father’s “actual income of \$141,931” per
15 month.

16 10) On 7/7/2026, Mother filed an updated Income and Expense Declaration which now specifies that
17 Father has paid the mortgage on the marital home (where Mother exclusively resides with the
18 children) of \$21,000 per month since March 2026. Mother also states that she has now paid her
19 attorney \$58,000 using savings, income, and credit. Mother now attaches a K-1 for 2025, a
20 balance sheet for 2025, and a Profit and Loss Statement for 2025. Mother also attaches earnings
21 statements from IHSS which show \$46,340.75 in total net pay as of 5/31/2026 (i.e., \$9,268 per
22 month).

23 11) At the prior 7/9/2026 hearing, the Court made the following orders:

- 24 a. The Court finds good cause to continue the hearing on Mother’s Request for Order filed
25 4/17/2026 to 8/27/2026 for the following reasons:
- 26 i. The domestic violence trial is currently scheduled to end on 7/28/2026, which
27 may impact timeshare.
 - 28 ii. Neither party filed a Statement of Support Calculations, as required by San
29 Francisco Local Rule 11.7(A)(2)(b)

1 iii. Mother provided new substantive information in her pleadings filed on
2 7/7/2026

3 iv. The Court needs additional information for Father.

4 b. At least 20 calendar days prior to the next hearing date, Father shall file and serve an
5 updated Income and Expense Declaration which includes as attachments his balance
6 sheets for 2024 and 2025, K-1 for 2025, and an updated Profit and Loss Statement for
7 2026.

8 c. At least 10 calendar days prior to the next hearing date, both parties shall file and serve a
9 Statement of Support Calculations which shall include as an attachment a proposed
10 XSpouse calculation. Father shall address in his Statement of Support Calculations
11 Mother's request that "officer salary" be added back to Father's income as well as fees
12 for "ask my accountant."

13 d. Between now and the date of the new hearing, Father shall continue to pay for the
14 carrying costs for the marital residence where Mother resides and the parties shall share
15 equally the following expenses for the children that are currently due or that become due
16 for payment between now and the date of the new hearing, subject to reallocation at the
17 next hearing date:

18 i. Private school tuition;

19 ii. Extracurricular activities;

20 iii. Camps;

21 iv. Childcare so either party can work (including au pair).

22 12) On 8/21/2026, Father filed a Statement of Support Calculations. Father asks the Court to continue
23 the determination of support until completion of the DVRO trial. Nevertheless, Father included
24 an XSpouse calculation which shows the following monthly support figures: \$13,098 in child
25 support and \$4,020 in temporary spousal support, for a total of \$17,118. Father also states that
26 Mother has not provided the information necessary for him to determine and pay his share of the
27 children's private school tuition, extracurricular activities, camps, and work-related childcare.
28
29

13) On 8/24/2026, Mother filed a Statement of Support Calculations which includes an XSpouse calculation which shows the following monthly support figures: \$21,953 in child support and \$14,351 in temporary spousal support, for a total of \$36,304.

14) The difference in the parties' two support calculations stems from Father's use of \$106,407 in monthly net self-employment income (which is what Father states he has earned on average this year) and Mother's use of \$181,570 in monthly net self-employment income (which is what Father reported in his 2025 tax return). Father states that his 2025 – 2026 decrease in income stems from "changes in ownership, patient flow, and referral practices at the offices where he practices." Father also states that his financial records also "reflect a substantial recent payment of corporate state income taxes." Mother did not address Father's claim that his income available for support decreased this year.

B. Findings and Order

- 1) The Court will use Father's current reported average monthly net self-employment income figure of \$106,407 per month to calculate base guideline child and temporary spousal support, and will subject any income he earns above that amount to a Smith / Ostler order, as set forth below.
- 2) Effective 4/17/2026 (the date Mother filed her Request for Order), in accordance with the XSpouse calculation attached hereto and incorporated by reference, Father shall pay to Mother base guideline child support of \$13,104 per month and base guideline temporary spousal support of \$4,057 per month, for a total of \$17,160 per month.
- 3) Commencing 9/1/2026, Father shall pay base support to Mother in full no later than the 5th of each month.
- 4) Effective 4/17/2026, the parties shall share equally the following child support add-ons:
 - a. Uninsured healthcare expenses for the children;
 - b. Childcare so either party can work (including au pair).
 - c. Private school tuition;
 - d. Extracurricular activities; and
 - e. Camps.
- 5) Commencing 9/1/2026, the order set forth in the Amended Temporary Restraining Order filed 4/29/2026 requiring Father to pay the mortgage for the residence in which Mother resides in the

1 amount of \$21,000 per month is suspended, and Father shall have no further obligation under the
2 4/29/2026 Temporary Restraining Order to pay the mortgage for the residence where Mother
3 resides.

4 6) Commencing 9/1/2026, the procedure for requesting and paying reimbursements for uninsured
5 healthcare expenses for the children shall be as set forth in Judicial Council Form FL-192.

6 7) Commencing 9/1/2026, the procedure for requesting and paying reimbursements for qualifying
7 childcare costs, private school tuition, extracurricular activities, and camps shall be as follows.
8 When a party (e.g. Party A) pays for a qualifying expense, within 30 days of paying the expense,
9 Party A shall present to Party B: (a) an itemized statement of charges, (b) proof of payment, and
10 (c) the amount due and owing from Party B. Within 10 days of receiving this information, Party
11 B shall submit a payment to Party A for Party B's share of the expense.

12 8) The parties shall meet and confer to determine any child and temporary spousal support arrears
13 and credits due and owing between the parties, including any arrears and credits due and owing
14 for child support add-ons for the period 4/17/2026 – 8/31/2026. Payments Father made to the
15 mortgage between April 2026 and August 2026 shall be credited against any child and temporary
16 spousal support, and child support add-on, arrears Father may owe. The Court's jurisdiction over
17 this issue is reserved. If the parties are unable to reach an agreement regarding this issue, either
18 party may file a new Request for Order.

19 9) Effective 4/17/2026, the parties shall pay Smith/Ostler child and temporary spousal support on
20 net self-employment income earned above their respective base monthly net self-employment
21 income amounts, in accordance with the Bonus Reports attached to the XSpouse report. The
22 parties shall conduct an annual true-up to determine any Smith/Ostler child and temporary
23 spousal support owed. Commencing 4/30/2027, no later than April 30th of each year, the parties
24 shall exchange Profit and Loss Statements and Schedule Cs for the immediately preceding year.
25 The parties shall thereafter meet and confer regarding the amount of Smith/Ostler child and
26 temporary spousal support owed, which shall be paid no later than May 30th. The first true-up
27 shall occur in April 2027 and shall encompass income earned between April 2026 through
28 December 2026.
29

1 10) A review hearing is set for **Thursday, 1/14/2027 at 9:00 AM in Dept. 404** (after the DVRO
2 hearing concludes) to review temporary spousal and child support in light of any change in
3 Father's timeshare and/or any material changes to either party's net self-employment income. At
4 least 25 calendar days prior to the next hearing date, both parties shall file and serve updated
5 Income and Expense Declarations, which shall include as attachments Profit and Loss Statements
6 for 2026. At least 10 calendar days prior to the next hearing date, both parties shall file and serve
7 update declarations outlining their requested orders, as well as proposed Statements of Support
8 Calculation.

9 11) Mother's attorney shall prepare the Findings and Order After Hearing, which shall include as
10 attachments an FL-342 form, the XSpouse calculation, the Bonus Table, and the FL-192 form.

11 12) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
12 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
13 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
14 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
15 proposed order after hearing directly to the court. Failure to submit the order after hearing within
16 10 days may allow the other party to prepare a proposed order and submit it to the court in
17 accordance with CA Rules of Court, Rule 5.125(d).

Fixed Shares	Father	Mother	Monthly figures		Cash Flow		
#of children	0	3	2026			Guideline	Proposed
% time with NCP	14.00 %	0.00 %	GUIDELINE		Comb. net spendable	87876	87876
Filing status	SINGLE	HH/MLA	Nets(adjusted)		Percent change	0%	0%
# exemptions	1 *	4	Support		Father		
Wages+salary	0	0	Father	55303	Payment cost/benefit	-17160	-17160
Self-employed income	106407	47785	Mother	32573	Net spendable income	38143	38143
Other taxable income	0	9268	Total	87876	Change from guideline	0	0
TANF+CS received	0	0	Support		% of combined spendable	43%	43%
Other nontaxble income	0	0	Addons	0	% of saving over guideline	0%	0%
New spouse income	0	0	Guideln CS	13104	Total taxes	51104	51104
401(k) employee contrib	0	0	S.Clara SS	4057	Dep. exemption value	0	0
Adjustments to income	0	0	Total	17160	# withholding allowances	0w	0w
SS paid prev marriage	0	0	-		Net wage paycheck	0	0
CS paid prev marriage	0	0			Mother		
Health insurance	0	700			Payment cost/benefit	17160	17160
Other medical expense	0	0			Net spendable income	49733	49733
Property tax expense	0	0			Change from guideline	0	0
Ded interest expense	0	0	Proposed		% of combined spendable	57%	57%
Charitable contributions	0	0	Tactic 9		% of saving over guideline	0%	0%
Misc tax deductions	0	0	CS	13104	Total taxes	23780	23780
Qual bus income ded	0	0	SS	4057	Dep. exemption value	0	0
Required union dues	0	0	Total	17160	# withholding allowances	0w	0w
Mandatory retirement	0	0			Net wage paycheck	0	0
Hardship deduction	0 *	0 *	Saving	0			
Other GDL deductions	0	0	Releases	0			
Child care expenses	0	0					

Father pays Guideline CS, Guideline SS, Proposed CS, Proposed SS

FC 4055 checking: ON

Per Child Information									
	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	14 - 86	0	0	0	Father	13104	Father	13104	Father
	14 - 86	0	0	0	Father	2621	Father	2621	Father
	14 - 86	0	0	0	Father	3931	Father	3931	Father
	14 - 86	0	0	0	Father	6552	Father	6552	Father

ANNUAL BONUS INCOME FATHER

Annual bonus paid to Mother

0

OFF

(0 = default steps)

Bonus amounts from: 0 to: 500000 Step: 10000

Additional Cost to Father						
Father's Bonus	Child Support % of bonus	\$	Spousal Support % of bonus	\$	Total CS	Total SS (adjusted)
0	0.00	0	0.00	0	0	0
10000	12.13	1213	13.77	1377	158457	50057
20000	12.12	2424	13.77	2754	159669	51434
30000	12.12	3636	13.77	4132	160881	52812
40000	12.12	4847	13.77	5510	162092	54190
50000	12.11	6057	13.78	6888	163302	55568
60000	12.11	7267	13.78	8268	164512	56948
70000	12.11	8477	13.78	9647	165721	58327
80000	12.11	9686	13.78	11027	166930	59707
90000	12.10	10894	13.79	12407	168139	61087
100000	12.10	12102	13.79	13788	169347	62468
110000	12.10	13310	13.79	15169	170555	63849
120000	12.10	14517	13.79	16551	171762	65231
130000	12.10	15724	13.79	17933	172968	66613
140000	12.09	16930	13.80	19315	174175	67995
150000	12.09	18136	13.80	20698	175380	69378
160000	12.09	19341	13.80	22081	176586	70761
170000	12.09	20546	13.80	23465	177791	72145
180000	12.08	21750	13.80	24849	178995	73529
190000	12.06	22913	13.78	26185	180158	74865
200000	12.02	24041	13.74	27483	181286	76163
210000	11.99	25169	13.71	28781	182414	77461
220000	11.95	26297	13.67	30080	183541	78760
230000	11.92	27424	13.64	31378	184669	80058
240000	11.90	28551	13.62	32677	185795	81357
250000	11.87	29677	13.59	33977	186922	82657
260000	11.85	30803	13.57	35277	188048	83956
270000	11.83	31929	13.55	36576	189174	85256
280000	11.81	33055	13.53	37877	190299	86557
290000	11.79	34180	13.51	39177	191425	87857
300000	11.77	35305	13.49	40478	192549	89158
310000	11.75	36429	13.48	41779	193674	90459
320000	11.74	37553	13.46	43081	194798	91761
330000	11.72	38677	13.45	44382	195922	93062
340000	11.71	39801	13.44	45684	197046	94364
350000	11.69	40924	13.42	46987	198169	95667
360000	11.68	42047	13.41	48289	199292	96969

Cost is an increase in support paid or a decrease in support received by this spouse

R = recipient of support

Bonus income may reverse direction of CS and/or SS

ANNUAL BONUS INCOME MOTHER

Annual bonus paid to Father

0

OFF

(0 = default steps)

Bonus amounts from: 0 to: 500000 Step: 10000

Additional Cost to Mother

Mother's Bonus	Child Support % of bonus	\$	Spousal Support % of bonus	\$	Total CS	Total SS (adjusted)
0	0.00	0	0.00	0	0 R	0 R
10000	3.06	306	18.28	1828	156939 R	46852 R
20000	3.00	601	18.00	3601	156644 R	45079 R
30000	2.98	895	17.91	5374	156349 R	43306 R
40000	2.97	1189	17.87	7148	156056 R	41532 R
50000	2.96	1481	17.85	8923	155764 R	39757 R
60000	2.95	1773	17.83	10699	155472 R	37981 R
70000	2.95	2063	17.82	12476	155181 R	36204 R
80000	2.94	2353	17.82	14253	154892 R	34427 R
90000	2.94	2642	17.81	16032	154603 R	32648 R
100000	2.93	2930	17.81	17811	154315 R	30869 R
110000	2.92	3217	17.81	19590	154027 R	29090 R
120000	2.92	3504	17.81	21371	153741 R	27309 R
130000	2.91	3789	17.81	23152	153455 R	25528 R
140000	2.91	4074	17.81	24934	153171 R	23746 R
150000	2.91	4358	17.81	26717	152887 R	21963 R
160000	2.90	4641	17.81	28500	152604 R	20180 R
170000	2.90	4924	17.81	30285	152321 R	18395 R
180000	2.89	5205	17.82	32069	152040 R	16611 R
190000	2.89	5486	17.82	33855	151759 R	14825 R
200000	2.88	5754	17.78	35562	151491 R	13118 R
210000	2.86	6016	17.73	37237	151229 R	11443 R
220000	2.85	6277	17.69	38913	150968 R	9767 R
230000	2.84	6538	17.65	40589	150707 R	8091 R
240000	2.83	6798	17.61	42266	150447 R	6414 R
250000	2.82	7057	17.58	43943	150188 R	4737 R
260000	2.81	7316	17.55	45621	149929 R	3059 R
270000	2.81	7574	17.52	47299	149671 R	1381 R
280000	2.80	7832	17.39	48680	149413 R	0
290000	2.79	8089	16.79	48680	149156 R	0
300000	2.78	8345	16.23	48680	148900 R	0
310000	2.77	8601	15.70	48680	148644 R	0
320000	2.77	8856	15.21	48680	148388 R	0
330000	2.76	9111	14.75	48680	148134 R	0
340000	2.75	9365	14.32	48680	147880 R	0
350000	2.75	9615	13.91	48680	147629 R	0
360000	2.74	9863	13.52	48680	147382 R	0

Cost is an increase in support paid or a decrease in support received by this spouse

R = recipient of support

Bonus income may reverse direction of CS and/or SS